

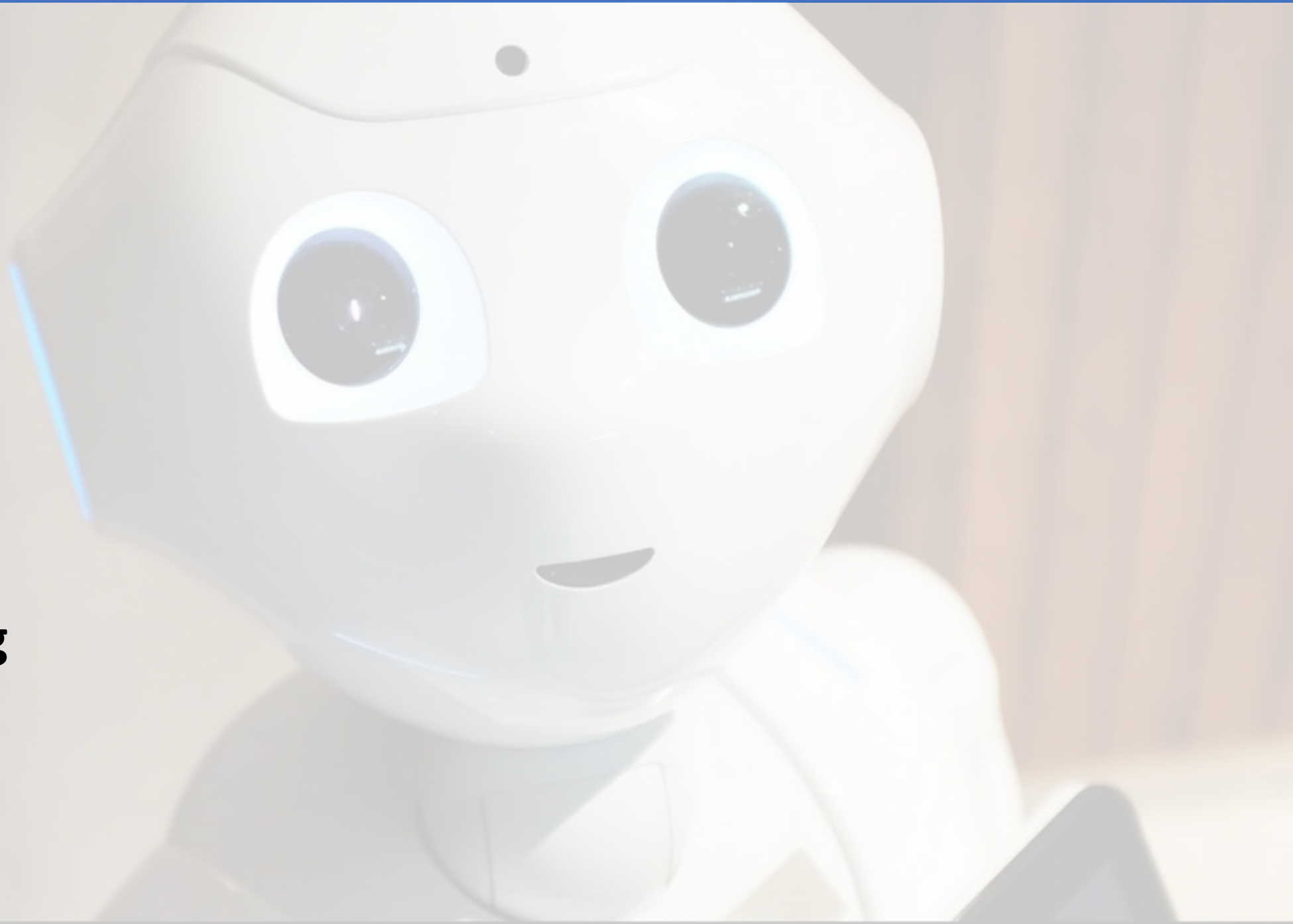
AI for Lawyers

SMU EDITION

Tom Daley – KoonsFuller, P.C.

| Topics

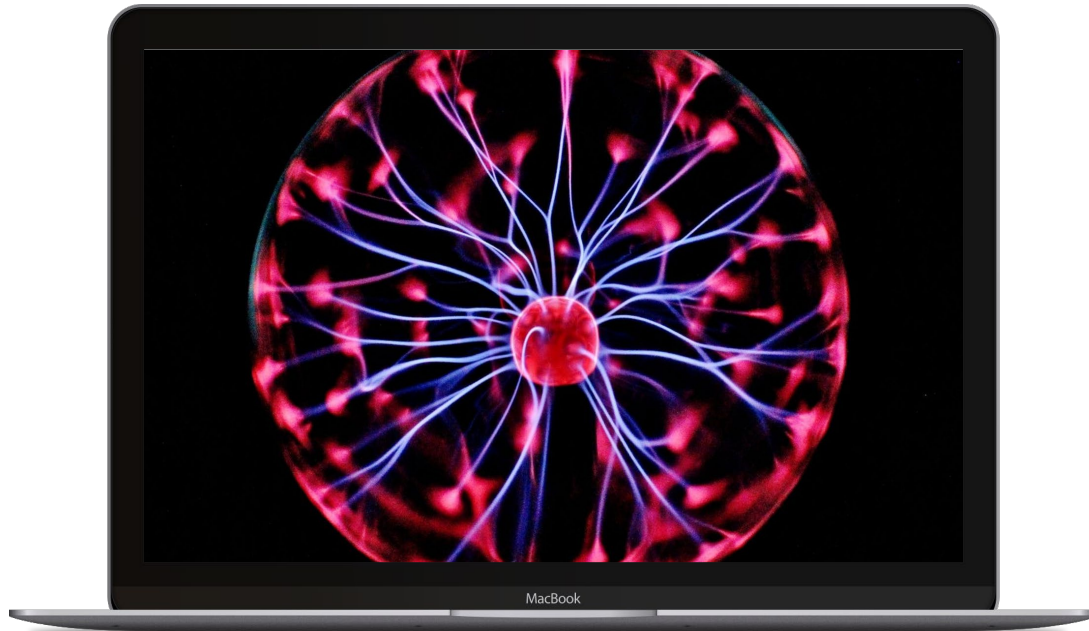
- **Definition**
- **Impact**
- **Ethics**
- **Prompting**
- **Use Cases**



What is AI?

Artificial. Intelligence. (??)

Definition of Artificial Intelligence

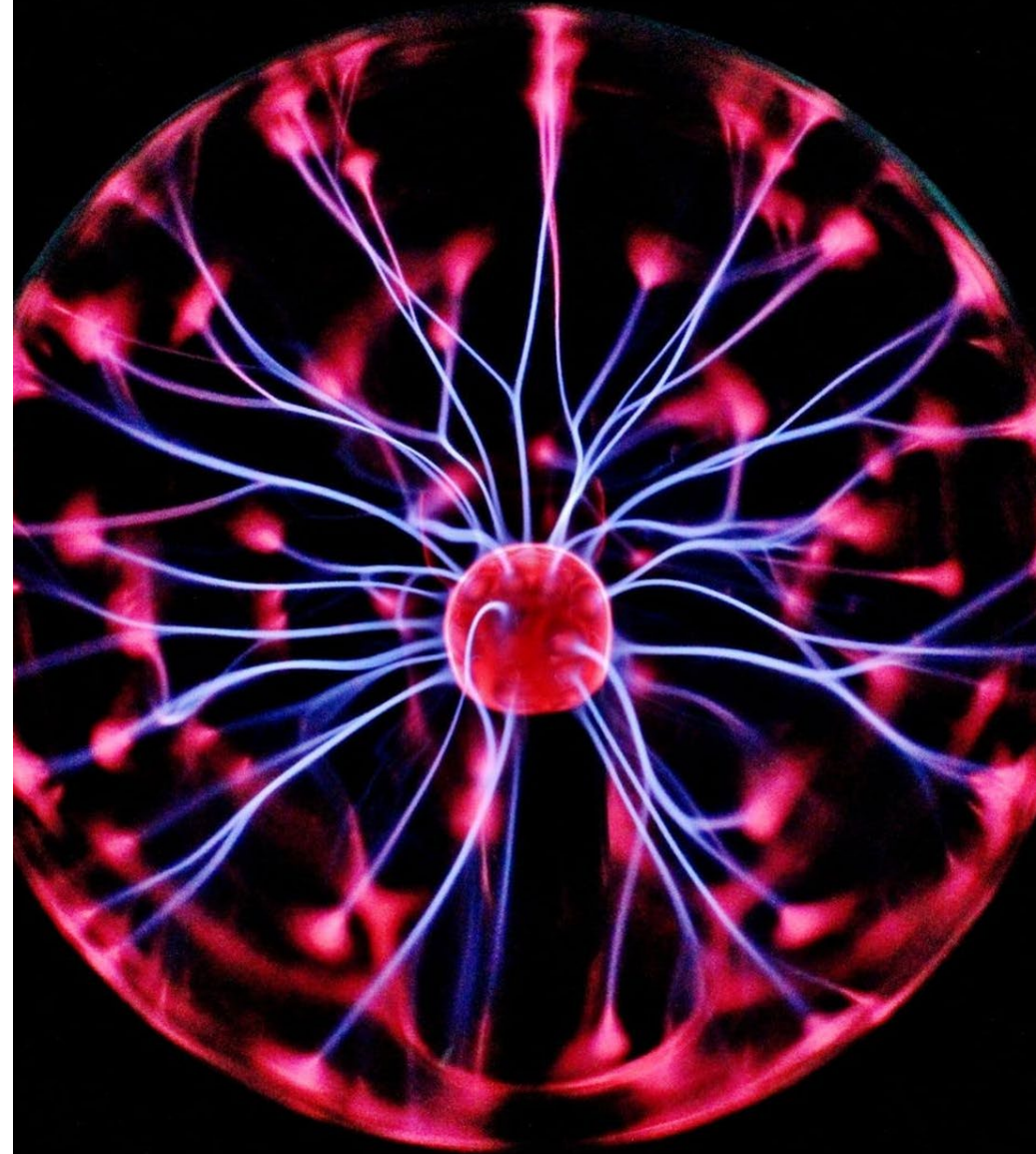


- Can't agree on definition of "Intelligence"
- How to agree on definition of "Artificial Intelligence?"



"Artificial Intelligence refers to computer systems designed to perform tasks that typically require human intelligence, such as recognizing patterns, learning from experience, solving problems, and making decisions. "

CHATGPT - TALKING ABOUT ITSELF



Impact on Professions

Who Wins? Who Loses?

| Impact on Professions

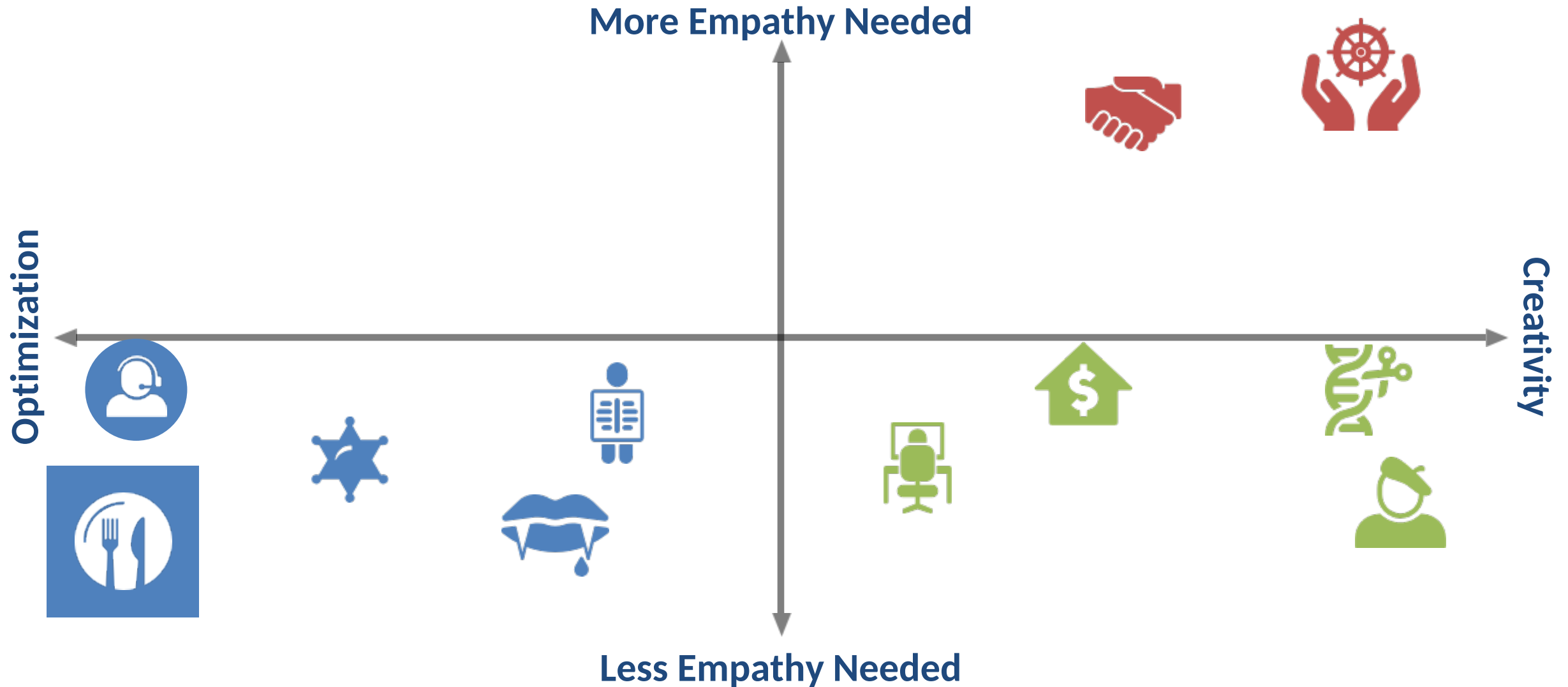


The Empathy Quadrant

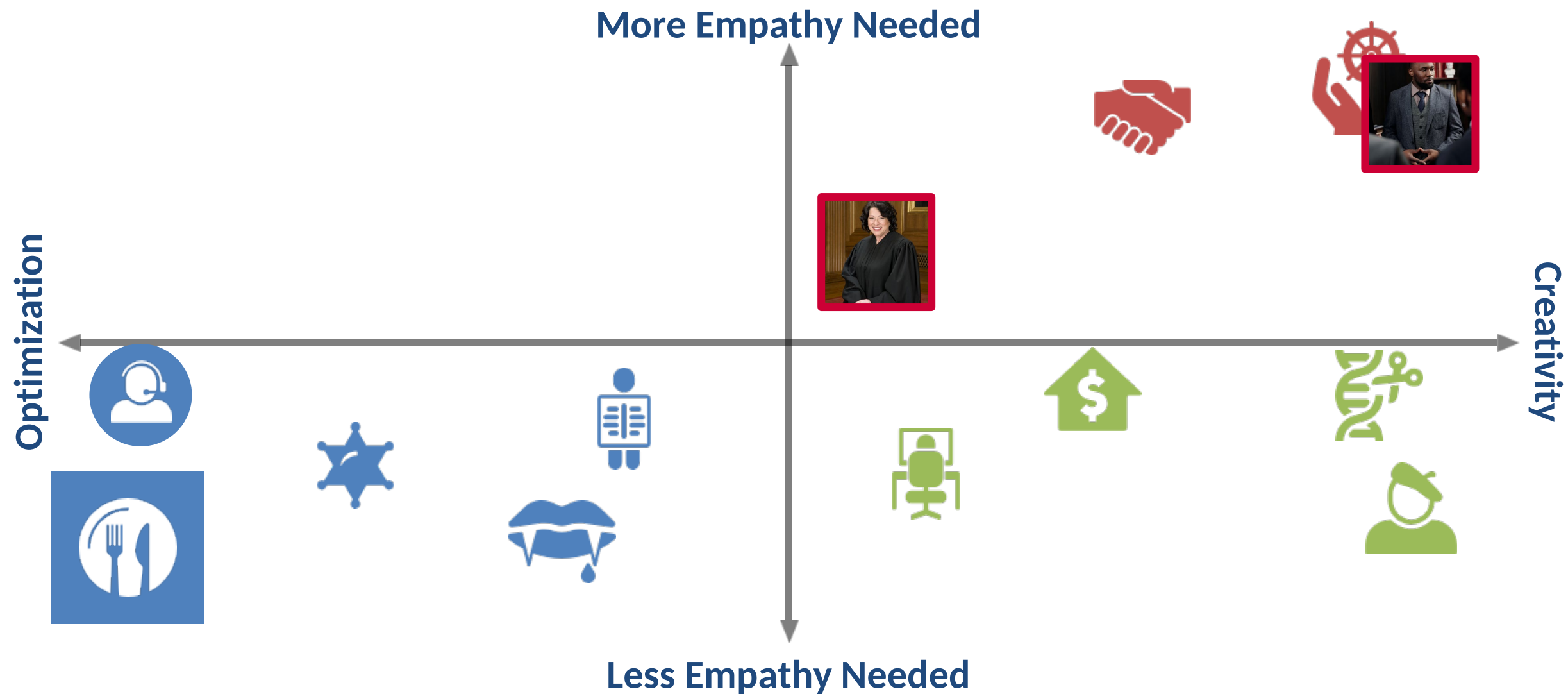
Kai Fu Lee categorizes roles based on **Empathy** and **Creativity**.

Lawyers thrive in the "Safe Zone" when they pivot from routine optimization to creative litigation and client advocacy.

Empathy & Creativity



Empathy & Creativity



Ethics

There are no **guardrails**, but there are **rules**

Texas Disciplinary Rules of Professional Conduct



Rule 1.01: Competence

Includes technological competence (Comment 8). We **must** understand the tools we use.



Rule 1.05: Confidentiality

Client data must **never** be entered into a public AI model. This is non-negotiable.



Rule 3.03: Candor to Tribunal

We are responsible for everything we say, written or orally. AI “hallucinations” violate this duty.

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Texas Disciplinary Rules of Professional Conduct



Rule 5.03: Supervision

Partners & supervising attorneys are responsible for AI use by non-lawyers and other lawyers.



Rule 1.04: Fees & Billing

Must remain transparent and reasonable in fees. **Cannot bill for time saved by AI.***

* Ethics Opinion 705

Texas Disciplinary Rules of Professional Conduct



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Partners & supervising attorneys are responsible for AI use by non-lawyers and other lawyers.



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Must remain transparent and reasonable in fees. **Cannot bill for time saved by AI.***

* Ethics Opinion 705

| Texas Ethics Opinion 705

While there may be many ways that generative AI can assist in the practice of law and benefit lawyers and clients alike, Texas lawyers must always be aware of the ethical issues that may arise in the use of generative AI. Among the many other issues, lawyers should **acquire basic technological competence** before using any generative AI tool, should always ensure that the tool **does not imperil confidential client information**, should always **verify the accuracy** of any responses received from a generative AI tool, and **should not charge clients for the time “saved”** by using a generative AI program.

Texas Ethics Opinion 680

"Lawyers should not 'unnecessarily retreat from the use of new technology that may save significant time and money for clients.'"

Opinion 680; TX Rule 1.01

The CRAFT-Q Method

Professional Prompt Engineering

| C – Context

Setting the Stage

The background information or raw data the AI needs to understand your specific situation.

"File uploaded, draft email pasted in below for your reference."

CRAFT-Q

R – Role

The Persona

What real-world role or expertise should the LLM adopt to provide the most expert guidance?

"You are a Texas family law litigation attorney."

CRAFT-Q

| A – Assignment

The Objective

The specific action you want the LLM to take with the context you provided.

"Review the attached email and rewrite it so that it is firm but not sanctionable."

CRAFT-Q

| F – Format

The Structure

Describe how you want the data presented—as a table, image, or specific chart type.

"Present your results as a table comparing original vs revised text."

CRAFT-Q

| T – Tone

The Voice

Define the stylistic delivery: academic, professional, or high-school graduate level vocabulary.

"Tone should be professional, but not too academic. Use industry jargon."

CRAFT – Q

| Q – Questions

The Safety Check

Invite the AI to pause and ask clarifying questions to ensure accuracy before beginning.

"If you have any questions, please ask them before you start generating output."

CRAFT-Q

Recipes

Once you have something working—**SAVE IT**

Drafting Professional Correspondence

C **<draft>**
I have had enough of your bullshit. This is the third time you've asked for a discovery extension. No further abuses of the discovery process or my good nature will be tolerated. Conduct yourself accordingly.
</draft>

R **You are a Texas Family Law Litigation Attorney.**

A **Rewrite my draft.**

F **Use proper punctuation and grammar.**

T **Use a tone that will not get me sanctioned or embarrassed if the judge reads the message.**

Q **If you have any questions, please ask before you start generating output.**

Drafting Professional Correspondence

<draft>

I have had enough of your bullshit. This is the third time you've asked for a discovery extension. No further abuses of the discovery process or my good nature will be tolerated. Conduct yourself accordingly.

</draft>

You are a Texas Family Law Litigation Attorney. Rewrite my draft using proper punctuation and grammar. Use a tone that will not get me sanctioned or embarrassed if the judge reads the message. If you have any questions, please ask before you start generating output.

"We are in receipt of your third request for a discovery extension. At this juncture, we are unable to grant further extensions as the repeated delays are beginning to prejudice my client's case. Please provide the outstanding responses immediately. Should they not be forthcoming, we will proceed with a Motion to Compel to ensure the litigation remains on schedule."

Affidavits for Temporary Restraining Orders

<email>

So my ex, Jason, came to my house and started banging on the door. I have a video of him from my ring camera. He was clearly drunk or high or both. I yelled at him through the camera to go away and eventually, it appeared that he did. However, when I went out back to take out the trash about an hour later, he sprang from behind my car, started screaming at me. When I turned to go back in the house, he grabbed my arm. We pushed and pulled a little and he eventually threw me to the ground, grabbed my cell phone, smashed it, and threw it in the pool so I couldn't call 911. Eventually my neighbor heard the racket came over and that scared my ex so he ran away.

</email>

CONTEXT

Affidavits for Temporary Restraining Orders

<email>

blah blah blah AND THEN HE blah blah blah

</email>

You are a Texas family law litigation attorney representing the applicant for a family violence protective order. The client's version of events are pasted in the **email** above. The judge will need to know what act of family violence occurred, against whom, when, and where. Please draft an affidavit for the client to review. It's OK to include background data that is relevant. If you do not have all the information you need, please insert BLANKS for the client to fill in later--don't skip creating placeholders.

PROMPT

Affidavits for Temporary Restraining Orders



BEFORE ME, the undersigned authority, on this day personally appeared _____ [CLIENT'S FULL LEGAL NAME], known to me to be the person whose name is subscribed below, and who, being by me duly sworn, did state upon oath as follows:

1. My name is _____ [CLIENT'S FULL LEGAL NAME]. I am over the age of eighteen (18) years, of sound mind, capable of making this Affidavit, and personally acquainted with the facts stated herein.
2. I reside at _____ [CLIENT'S ADDRESS], _____ [CITY], Texas.
3. I was previously in a relationship with Jason _____ [EX'S FULL LEGAL NAME] (hereinafter referred to as "Respondent"). [NATURE OF RELATIONSHIP - e.g., "We were married for ___ years and divorced on _____" OR "We were in a dating relationship for ___ months/years that ended on _____"].

OUTPUT

Affidavits for Temporary Restraining Orders

Want to see Google's **NotebookLM** handiwork?



AI-Assisted Affidavit Drafting: A Lawyer's Guide

The AI Drafting Process



1. Consolidate Raw Information

Gather all client communications, such as emails and notes from phone calls.

2. Structure the Data for the AI

Organize the information using clear formats like XML-style tags or Markdown headers.

3. Craft a Detailed Prompt

Combine the client's story with relevant legal definitions and statutes for context.

The Human-in-the-Loop Protocol



AI Generates a DRAFT, Not a Final Document

The AI's primary role is to organize facts into a readable, logical narrative.



The Attorney's Critical Review is Mandatory

Verify every word against client facts and ensure all legal standards are met.



The Client Must Vet Every Factual Assertion

Remind clients they will be cross-examined and must confirm the affidavit's accuracy.



Create Discovery Response Shells

Create Discovery Response Shells

INTERROGATORIES

1. State the identity and location of any person who is expected to be called to testify at the trial of this lawsuit.
2. If any documents exist that relate to any of the following, describe each document and state its location:
 - a. conservatorship;
 - b. possession and access;
 - c. child support and medical and dental support for the children;
 - d. family violence;
 - e. attorney's fees; and
 - f. requests for permanent injunctions.
3. If you contend that it is not in the best interest of the children that [REDACTED] be appointed joint managing conservator with the exclusive right to designate the primary residence of the children, state in general the legal theories that support your contention and identify facts of which you are specifically aware that establish, demonstrate, or prove that contention.
4. State what periods of possession and access each conservator should have, and state in general the legal theories that support your contention and identify facts of which you are specifically aware that establish, demonstrate, or prove that contention.
5. If you contend that it is in the best interest of the children that the primary residence of the children be subject to a geographic restriction, identify the geographic area to which the residence should be restricted and state in general the legal theories that support your contention and identify facts of which you are specifically aware that establish, demonstrate, or prove that contention.
6. State the identity and location of your employers since January 1, 2023, and the dates you were employed by each.
7. If you have dependent health or dental insurance coverage available to you, state how much it would or does cost you to cover the children on that policy in addition to whatever you pay for health or dental insurance coverage for yourself and any other person.
8. Generally, what hours do you work and on which days of the week?
9. State your current monthly gross income from all sources.
10. Identify all sources of income you have received since March 1, 2024, including employment income, self-employment income, and gifts.
11. State your monthly expenses, itemized by category including but not limited to rent, utilities, food, childcare, transportation, insurance, and medical expenses.

- Non-Fillable PDF
- Have to Ask for a Word version
- Still have to convert their Request to your Response
- Eats a day of clock time and an hour or so of billable time

Create Discovery Response Shells

I have attached opposing counsel's interrogatories. You are a paralegal for a Texas Family Law Litigation Attorney. You must create editable shells for the attorney and the client to fill in. For each interrogatory, output the following MARKDOWN:

****Interrogatory #[number]**:** [Full text of interrogatory, without abbreviation or paraphrasing]

****Interpretation**:** [Leave blank for me to fill in]

****Privileges**:** [Fill in appropriate attorney-client, work-product, physician-patient assertions of privilege]

****Objections**:** [Leave blank for me to fill in]

****Response**:** [Leave blank for me to fill in]

Create Discovery Response Shells

NO. 469- -2025
IN THE MATTER OF THE MARRIAGE OF
 AND
AND IN THE INTEREST OF , CHILDREN
469th JUDICIAL DISTRICT — COLLIN COUNTY, TEXAS

PETITIONER'S ANSWERS TO RESPONDENT'S WRITTEN INTERROGATORIES

INSTRUCTIONS TO ATTORNEY AND CLIENT: Yellow-highlighted fields marked [TO BE COMPLETED] require input. Blue-highlighted fields contain pre-filled legal analysis. Review all privilege and objection fields with your attorney before finalizing responses. Do not sign or serve these answers without attorney review.

Interrogatory No. 1

Interrogatory	State the identity and location of any person who is expected to be called to testify at the trial of this lawsuit.
Interpretation	[TO BE COMPLETED]
Privileges	Consult attorney before disclosing any expert witness identity if not yet designated. Work product doctrine may protect mental impressions regarding witness selection strategy; however, the identity of trial witnesses is generally not privileged and must be disclosed.
Objections	[TO BE COMPLETED]
Response	[TO BE COMPLETED]

Interrogatory No. 2

Interrogatory	If any documents exist that relate to any of the following, describe each document and state its location: a. conservatorship; b. possession and access; c. child support and medical and dental support for the children; d. family violence; e. attorney's fees; and f. requests for permanent injunctions.
Interpretation	[TO BE COMPLETED]
Privileges	Attorney-client privilege applies to any communications with counsel regarding these topics. Work product doctrine protects documents prepared by or for counsel in anticipation of litigation. Do not identify attorney-client communications or attorney work product in your response; list only non-privileged documents in your possession.
Objections	[TO BE COMPLETED]
Response	[TO BE COMPLETED]



Create an Inventory with Intermediate Database

Create an Inventory with Intermediate Database

You are a Texas family law litigation attorney. You must create a JSON database of assets and debts based on documents that I feed to you.

For each document, identify what type of asset (bank account, brokerage account, retirement account, etc.) or what type of debt (credit card, student loan, car loan, mortgage debt, etc.)

Create an entry in the list of JSON objects for each asset and debt. Here are the properties to extract for each asset and debt type:

Bank Account

- Institution: The name of the bank
- Account Number
- Type of account: e.g. Checking or Savings
- Account holder's name
- Ending Date of the Statement
- Balance

Investment Account

- Institution: The name of the brokerage firm
- Account Number
- Type of account: brokerage, crypto, etc.
- Account holder's name
- Ending Date of the Statement
- Balance
- :
- :

Credit Card

- Institution: The name of the issuer
- Account Number
- Type of account: credit card
- Account holder's name
- Ending Date of the Statement
- Balance

Create an Inventory with Intermediate Database

```
1  {
2    "case": {
3      "caption": "In the Matter of the Marriage of [REDACTED]",
4      "cause_number": "26-0[REDACTED]",
5      "court": "477th Judicial District",
6      "county": "Denton County, Texas",
7      "filing_party": "[REDACTED]"
8    },
9    "real_property": [
10     {
11       "address": "[REDACTED] Denton County, TX",
12       "county": "Denton",
13       "legal_description": "[REDACTED] BLK N Lot 26",
14       "mortgage_company": "Truist",
15       "fair_market_value": 1260000,
16       "mortgage_balance": 496699
17     },
```


Create an Inventory with Intermediate Database

```
63  "financial_accounts": [  
64    {  
65      "institution": "Frost",  
66      "account_number": "6[REDACTED]7",  
67      "name_on_account": "[REDACTED] and [REDACTED]",  
68      "account_type": "Personal Account",  
69      "balance_date": "2026-01-06",  
70      "balance": 45883.89,  
71      "function": "Operating Acct"  
72    },  
73    {  
74      "institution": "Frost",  
75      "account_number": "2[REDACTED]9",  
76      "name_on_account": "[REDACTED] and [REDACTED]",  
77      "account_type": "Personal Account",  
78      "balance_date": "2026-01-06",  
79      "balance": 10853.51,  
80      "function": "Home Tax Money"  
81    },
```

Create an Inventory with Intermediate Database

Add the following Brokerage accounts. The type of account (Rollver IRA, Self-Directed IRA, etc) is not known on any of them so say "Unknown" in the json file. The account holder's name is also unknown so put in a place holder of "Unknown" there, too.

Brokerage Firm | Account Number | Balance | Balance Date

-----+-----+-----+-----

Charles Schwab | x[REDACTED] | \$83,782.47 | 8/31/2025

Charles Schwab | x[REDACTED] | \$1,194,414.60 | 12/31/2024

Charles Schwab | x[REDACTED] | \$631,500.32 | 12/31/2024

Commercial Bank of Texas, [REDACTED] | x[REDACTED] | Unknown | Unknown

E*Trade | x[REDACTED] | Unknown | Unknown

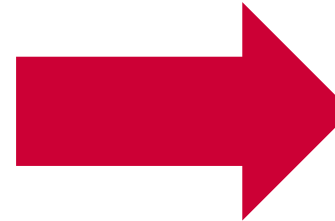
JP Morgan | x[REDACTED] | .02 | 12/31/2024

Morgan Stanley | x[REDACTED] | \$14,995,289.00 | 1/31/2025

Morgan Stanley | x[REDACTED] | \$8,404,742.00 | 1/31/2025

Create an Inventory with Intermediate Database

The database is complete. I have uploaded a sample formal inventory from another case. Draft an inventory & appraisal for our client XXXXXX using this exact same format.



NO. [REDACTED]

IN THE MATTER OF
THE MARRIAGE OF

[REDACTED]
AND
[REDACTED]

§
§
§
§
§
§

IN THE DISTRICT COURT

477TH JUDICIAL DISTRICT
DENTON COUNTY, TEXAS

ORIGINAL INVENTORY AND APPRAISEMENT Of [REDACTED]

Community Estate of the Parties

1. Real Property

1.1.

Address: [REDACTED] Denton County, TX
County: Denton
Legal description: [REDACTED] 7G BLK N Lot 26
Mortgage company: Truist
Fair market value: \$1,260,000.00
Outstanding mortgage balance: \$496,699.00
Net equity: \$763,301.00

1.2.

Address: [REDACTED], Celina, TX 75009
County: Collin
Legal description: [REDACTED] BLK A
Lot 7
Mortgage company: None
Fair market value: \$875,000.00
Outstanding mortgage balance: \$0.00
Net equity: \$875,000.00

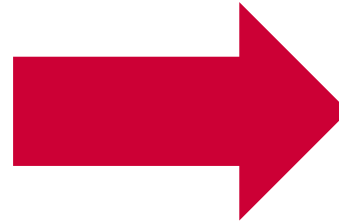
1.3.

Address: [REDACTED] Louisiana
County: Unknown
Legal description: Unknown
Mortgage company: None
Fair market value: \$250,000.00

Create an Inventory with Intermediate Database

Now create a settlement spreadsheet with the assets and debts listed in the same sequence as the formal I&A. For each row output these columns:

...etc...

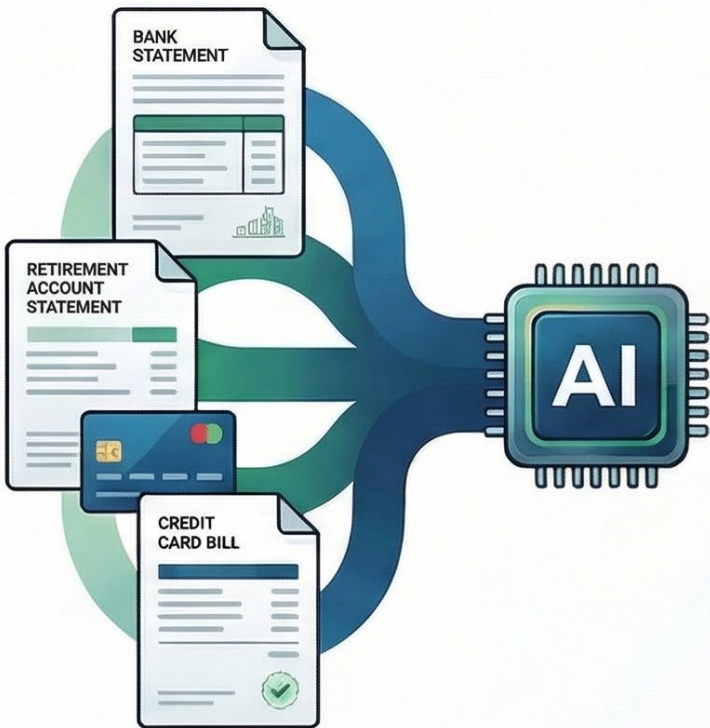


Create an Inventory with Intermediate Database

1					
2	Settlement Proposal				
3	No. 26-477; 477th Judicial District, Denton County, Texas				
4					
5	ASSETS	Value	Wife	Husband	Notes
6	<u>REAL PROPERTY</u>				
7	██████████, Denton County, TX	\$763,301.00			Mtg: \$496,699
8	██████████rg Lane, Celina, TX 75009	\$875,000.00			
9	██████████berty, Louisiana	\$250,000.00			Titled to: ██████████
10	██████████, Burke, TX				Titled to: ██████████
11	██████████h Star Drive, Avon, CO	\$7,150,000.00			Titled to: ██████████able Trust
12	██████████nd				
13	Subtotal - Real Property	\$9,038,301.00	-	-	
14					
15	<u>CASH AND ACCOUNTS WITH FINANCIAL INSTITUTIONS</u>				
16	Frost 64 ██████████	\$45,883.89			Operating Acct
17	Frost 24 ██████████	\$10,853.51			Home Tax Money
18	Frost 60 ██████████	\$120,000.00			IRS Money
19	Frost Brokerage Services ██████████	\$320,736.15			Matures in 2030

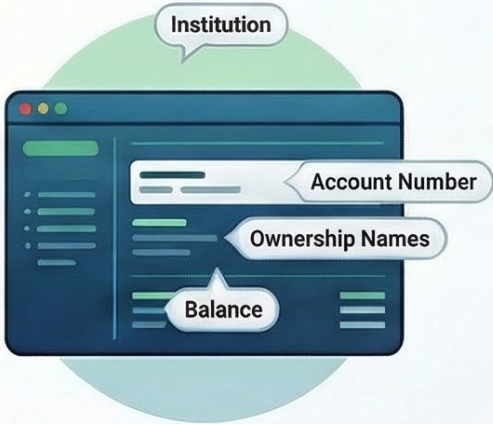
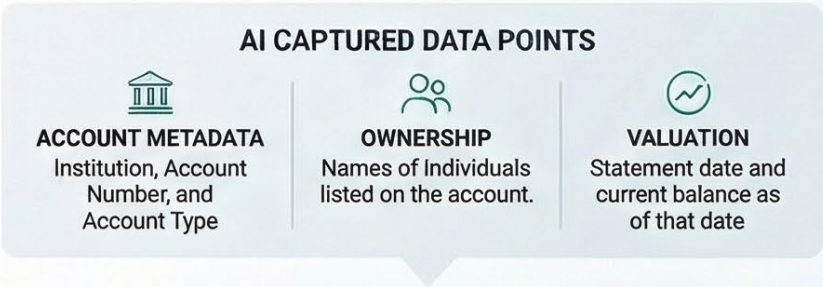
Streamlining Texas Divorce: AI-Powered Financial Inventory & Settlement

STAGE 1: DATA EXTRACTION & STRUCTURED ANALYSIS



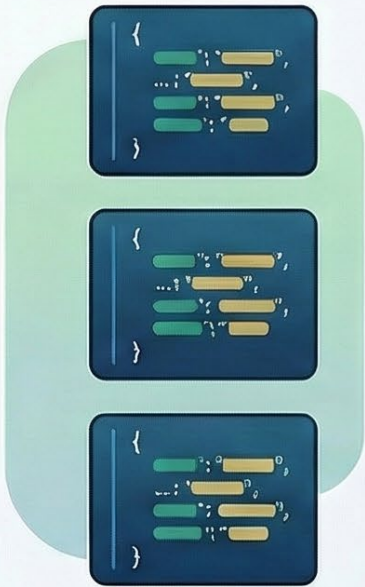
Raw Data Ingestion

Feed bank, retirement, and credit statements directly into the LLM for analysis.



Intelligent Property Mapping

AI identifies for every asset.



JSON Object Conversion

The system creates a structured data array representing every identified asset and debt.

STAGE 2: AUTOMATED LEGAL & SETTLEMENT OUTPUTS



Formal Inventory & Appraisal

Generates a court-ready document that complies with Texas discovery rules.



Interactive Settlement Spreadsheet

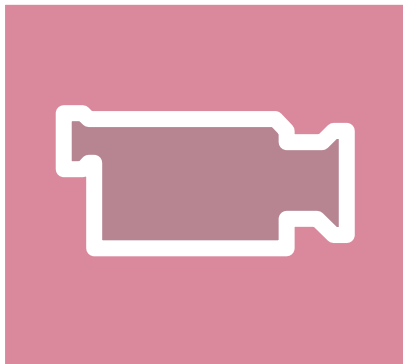
Produces an Excel file for comparing 'To Wife' and 'To Husband' allocation scenarios.



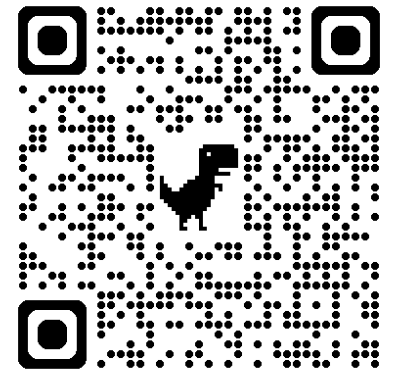
Questions?

Jensen Huang

What does it mean to be SMART?



<https://www.instagram.com/p/DULi9rOiF2Q/>



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